

HARLAN, J., dissenting.

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of the history of the Establishment Clause have found that "it is impossible to give a dogmatic interpretation of the First Amendment, and to state with any accuracy the intention of the men who framed it" ¹⁴ Above all, the evidence seems clear that the First Amendment was not intended simply to enact the terms of Madison's Memorial and Remonstrance against Religious Assessments. ¹⁵ I do not suggest that history is without relevance to these questions, or that the use of federal funds for religious purposes was not a form of establishment that many in the 18th century would have found objectionable. I say simply that, given the ultimate obscurity of the Establishment Clause's historical purposes, it is inappropriate for this Court to draw fundamental distinctions among the several constitutional commands upon the supposed authority of isolated dicta extracted from the clause's complex history. In particular, I have not found, and the opinion of the Court has not adduced, historical evidence that properly permits the Court to distinguish, as it has here, among the Establishment Clause, the Tenth Amendment, and the Due Process Clause of the Fifth Amendment as limitations upon Congress' taxing and spending powers. ¹⁶

¹⁴ Antieau, Downey & Roberts, *supra*, at 142. See also Howe, *supra*, at 10-12.

¹⁵ See, in particular, Antieau, Downey & Roberts, *supra*, at 126-128, 144-146, 207-208. And see 1 Annals of Cong. 730-731. It has elsewhere been observed, I think properly, that "to treat [Madison's Remonstrance] as authoritatively incorporated in the First Amendment is to take grotesque liberties with the simple legislative process, and even more with the complex and diffuse process of ratification of an Amendment by three-fourths of the states." Brown, *Quis Custodiet Ipsos Custodes?*—The School-Prayer Cases, 1963 Sup. Ct. Rev. 1, 8.

¹⁶ I will of course grant that claims under, for example, the Tenth Amendment may present "generalized grievances about the conduct of government or the allocation of power in the Federal System." *Ante*, at 106. I will also grant that it would be well if